

26VECV00151 26VECV00151

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Case Number: 26VECV00151 Hearing Date: August 13, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Chessa Francisco Del Rosario,

Plaintiff.

v.

Kijana Dechawn SR Gordon

Defendant.

Defendant.

Case Number Department

26VECV00151 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

for Relief Under CCP section 473(b)

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

January 12, 2026, Plaintiff Chessa Francisco Del Rosario ("Plaintiff") filed a complaint against Defendant Kijana Dechawn SR Gordon, alleging a motor vehicle cause of action. (Complaint p. 3.)

On

May 8, 2026, Plaintiff filed a motion for relief under CCP section 473, subdivision (b) for order deeming complaint filed nunc pro tunc (the "Motion"). As of August 10, 2026, no opposition has been filed.

II.

DISCUSSION

Plaintiff

moves for an order under Code of Civil Procedure section 473, subdivision (B) to deem Plaintiff's complaint filed nunc pro tunc as of December 28, 2025. (Motion p. 1.) Plaintiff states they timely filed the complaint on the statutes of limitations deadline "but the filing was rejected due to a correctable, non-substantive technical defect." (Motion pp. 1-2.)

Plaintiff

cites *Litzmann v. Workmen's Comp. App. Bd.* ("Litzmann") (1968) 266 Cal.App.2d 203, 205 for the proposition "[w]here a filing is timely submitted but rejected for a technical defect, courts may deem it filed as of the original submission date to prevent injustice." (Motion p. 3.)

The

Court of Appeal in *Litzmann*, supra, 266 Cal.App.2d at p. 205 stated "[t]here is a strong public policy in favor of hearing cases on their merits and against depriving a party of his right of appeal because of technical noncompliance in matters of form." In *Litzmann*, the clerk rejected the filing because it was not in the proper form and on the proper size sheets. (Id.

at pp. 204-205.) The Court noted that “[t]he only rule that expressly deals with the requirements for filing a petition for review of industrial accident cases is Rule 57, California Rules of Court” and “[t]hat rule contains no directions as to the form of the petition or the size of the paper on which it is to be filed, nor does it contain any direction to the clerk to reject a petition for any reason.” (Id. at p. 205.) The Court held the petition was timely filed and the court had jurisdiction to consider the case. (Id.)

In

Carlson v. State of California Department of Fish & Game (“Carlson”) (1998) 68 Cal.App.4th 1268, 1276, the Court of Appeal held that “state law is clear that a paper is deemed filed when it is presented to the clerk for filing in a form that complies with CRC 201. If a paper is thus presented, the clerk has a ministerial duty to file it.”

The

Court of Appeal in Mito v. Temple Recycling Center Corp. (“Mito”) (2010) 187 Cal.App.4th 276, 280, agreed with the rule as stated in Carlson, stating:

We agree with Carlson

v. Department of Fish & Game, *supra*, 68 Cal.App.4th at page 1270, 80 Cal.Rptr.2d 601: “the local superior court may not condition the filing of a complaint on local rule requirements. Instead, so long as a complaint complies with state requirements, the clerk has a ministerial duty to file.” In so holding, we are neither invalidating the local rule nor prohibiting the imposition of appropriate sanctions for failure to comply with the local rule. Rather, we are only holding that the sanction of refusal to initially file the complaint is prohibited by the state rule.

Plaintiff

submits an unsigned declaration stating that they submitted the complaint through the electronic filing system but the the clerk rejected the complaint on January 29, 2025 “due to a procedural defect.” (Del Rosario Declaration.) Plaintiff resubmitted the complaint on January 2, 2026, and it was rejected again. (Del Rosario Declaration.) Plaintiff resubmitted the complaint and it was accepted on January 10, 2026. (Del Rosario Declaration.) Similarly, in the Motion, Plaintiff states “the filing was rejected due to a correctable, non-substantive technical defect.” (Motion pp. 1-2.)

Plaintiff

provides the court with no information as to the nature of the technical defects that caused the clerk to reject Plaintiff's filings. The court's Register of Actions likewise contains no information as to the nature of the defects causing the clerk to reject Plaintiff's filings. Thus, the court cannot determine under *Mito*, supra, 187 Cal.App.4th at p. 280 that Plaintiff's filings complied with state requirements such that the clerk had a ministerial duty to file them.

III.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: August 13, 2026 _____ Hon. Eric Harmon

Judge

of the Superior Court